

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

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CARLOS DEJESUS,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of Trial

CITY OF NEW YORK, P.O. FRANCISCO RODRIGUEZ,
and POLICE OFFICERS JOHN AND JANE DOE I - V,
meant to designate additional offending officers,
Individually and in their official capacities,

The basis of venue is:
CPLR 504 (3)

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
April 13, 2023



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To: CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept. , New York, New York 10007

P.O. Francisco Rodriguez, Shield 6131
40th Precinct 257 Alexander Ave., Bronx NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CARLOS DEJESUS,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. FRANCISCO RODRIGUEZ,
and POLICE OFFICERS JOHN AND JANE DOE I - V,
meant to designate additional offending officers,
Individually and in their official capacities,

Defendants.
-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF CARLOS DEJESUS

1. At the time of the commencement of this action, plaintiff CARLOS DEJESUS was

and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.
3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and

still is, a Municipal Corporation and body politic, duly formed, organized and existing

under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about September 28, 2022 P.O. FRANCISCO RODRIGUEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about September 28, 2022, at approximately 11:50 P.M., P.O. FRANCISCO RODRIGUEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about September 28, 2022, OFFICERS JOHN AND JANE DOE I - V, whose names are presently unknowable by Plaintiff but necessarily known by Defendants by virtue of the allegations made herein, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on and about September 28, 2022, at approximately 11:50 P.M., said OFFICERS JOHN AND/OR JANE DOE were working and acting within the scope of their employment as a Police Officers, and under the color of law.

9. That on or about September 28, 2022 at approximately approximately 11:50 P.M., plaintiff was lawfully present at or near the vicinity of 774 East 149th Street, Bronx, New York.

10. That the above premises is a public grocery establishment that Plaintiff entered.

11. That Plaintiff was approached by an officer who requested Plaintiff's identification.

12. Plaintiff asked for the reason for wanting his identification and the officer, without providing a reason for wanting the Plaintiff's identification, repeated his request for Plaintiff's Identification, and Plaintiff repeated his request as well.

13. That POLICE OFFICER JANE DOE then forcefully grabbed Plaintiff by his arm, and was joined by three other Officers who proceeded to assault and batter Plaintiff.

14. That the offending officers did utilize unnecessary unjustified excessive force upon plaintiff, which constituted assaults and battery upon plaintiff.

15. That the said officers proceeded to forcefully push Plaintiff into a shelf, OFFICER JANE DOE pulled Plaintiff's head back by pulling Plaintiff's hair, three officers threw Plaintiff to the ground, beat and punched Plaintiff, applied pressure to Plaintiff's head, neck and back, restrained Plaintiff with handcuffs and searched his person, and placed him under arrest.

16. That on or about September 28, 2022 at approximately approximately 11:50 P.M., at or near the vicinity of East 184th Street and Ryer Avenue, Bronx, New York, the plaintiff CARLOS DEJESUS was assaulted, detained and improperly arrested and confined without privilege, warrant, proper authority nor justification, having no reason in law or in fact to assault, arrest or confine CARLOS DEJESUS.

17. That the defendants, their agents, servants and/or employees arrested the plaintiff CARLOS DEJESUS without any basis in law or fact and without reasonable, probable or just cause or justification.
18. That the defendants, their agents, servants and/or employees arrested the plaintiff CARLOS DEJESUS without any basis in law or fact, and made false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
19. That the defendants, their agents, servants and/or employees unlawfully arrested, searched and detained the plaintiff CARLOS DEJESUS, who was aware of his unlawful detention and confinement, and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.
20. That plaintiff was forcibly detained, including being restrained by hand cuffs and by other means, which necessarily constituted additional unwanted touching, thereby further assaulting and battering plaintiff.
21. That plaintiff was transported to the 40th Police Precinct where he was placed in a jail cell, photographed and fingerprinted.
22. That while Plaintiff was detained at the 40th Precinct, he had a panic type attack and requested medical attention, which request was denied.

23. After a period of time P.O. FRANCISCO RODRIGUEZ did issue to plaintiff a Desk Appearance Ticket, and thereafter released plaintiff from custody.
24. Thereafter, on October 19, 2022, plaintiff was required to appear before a Judge of the Criminal Court to defend against unjust charges, however, the District Attorney of Bronx County declined to prosecute Plaintiff, and the criminal proceeding begun without probable cause and with actual malice were terminated in Plaintiff's favor.
25. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause nor knowledge of warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff was consciously aware of and did initiate a criminal proceeding without probable cause maliciously.
26. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy, practice and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, to obtain overtime pay and/or for employment advancement and/or to attempt to justify their own wrongful conduct, and to subjugate certain populations, without probable or

reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

27. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and conducting searches in public and while in custody are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

28. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

29. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE

DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

30. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department. Subsequently numerous other officers have made similar allegations in the public press and in sworn Court pleadings, affidavits and through testimony.

31. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent persons for such charges as disorderly conduct in ill-fated attempts at justifying their own misconduct, or in retaliation for legal behaviors not to the arresting officers liking, and in an effort to subjugate certain minority male populations as an excuse for selectively enforcing supposed 'quality of life' violations.

32. Said practice and procedure of falsely arresting innocent persons on such charges as disorderly conduct is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs in retaliation and in ill-fated attempts at justifying their own wrongful conduct.

33. For instance, statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest show that 5% of officers account for 40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest, evincing, among other things, the violent nature of only certain officers, including the named offers herein.

34. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf . That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at

remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein

35. While numerous high profile cases demonstrate this practice, such as the de minimis disciple of the police officers who caused or contributed to the deaths of Eric Gardner and Noel Polanco or the assault upon James Blake, thousands of other individuals have been victims of this practice, including the Plaintiff herein, who garner no publicity but who are necessarily known by the Defendants by virtue of the claims and actions brought and filed against such officers who engage in such nefarious and brutal actions yet receive little or no repercussions or discipline as detailed above.

36. The herein above described actions and omissions, engaged in under the color of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the Plaintiff TYRONE COOPER of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of

law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Sixth Amendment right to a fair trial, the Eighth Amendment right to be free from cruel and unusual punishment, the 14th Amendment's right to be free of a deprivation of liberty without due process and equal protection, and as applicable under Title 42 U.S.C. 1983, et seq.

37. That no negligence or actions on the part of the plaintiff CARLOS DEJESUS contributed to the occurrences alleged herein in any manner whatsoever.

38. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

39. That as a result of the foregoing, the plaintiff CARLOS DEJESUS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF CARLOS DEJESUS

40. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 39 as though more fully set forth herein.

41. That on November 9, 2022 plaintiff caused a Notice of Claim to be presented to the defendant CITY OF NEW YORK, by providing a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and

post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

42. At least thirty (30) days have elapse prior to the commencement of this action and adjustment of payment thereof be neglected or refused by the defendant.

43. Defendant did notice and demand a General Municipal Law §50-h hearing and plaintiff did appear and testify at said hearing on March 1, 2023.

44. This action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based or within the time allowed by law.

45. That on or about September 28, 2022 at approximately 11:50 P.M., at or near the vicinity of 774 East 149th Street, Bronx, New York, the plaintiff CARLOS DEJESUS was improperly arrested and confined without privilege, knowledge of warrant, proper authority, justification nor reasonable or probable cause, having no reason in law or in fact to arrest CARLOS DEJESUS.

46. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff CARLOS DEJESUS of Due Process under Law.

47. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants

and / or employees, P.O. FRANCISCO RODRIGUEZ, POLICE OFFICERS JOHN

AND/OR JANE DOE were acts of discrimination, were racist, and improper, and that

the defendants' actions amounted to False Arrest, and the defendants were otherwise

careless, reckless and negligent and in violation of the Constitution of the State of New

York, Article 1, Section 12.

48. That the plaintiff CARLOS DEJESUS, being aware of his unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK and its POLICE OFFICERS JOHN AND/OR JANE DOE.

49. That no negligence or actions on the part of the plaintiff CARLOS DEJESUS contributed to the occurrences alleged herein in any manner whatsoever.

50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

51. That as a result of the foregoing, the plaintiff CARLOS DEJESUS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF CARLOS DEJESUS

52. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 51 as though more fully set forth herein.

53. That during his aforesaid arrest, the defendants, their agents, servants and/or employees utilized unnecessary, excessive and unjustified force against the plaintiff.

54. That the actions herein described, by the defendants, their agents, servants and/or employees, constituted assaults and battery upon Plaintiff.

55. As a result of the aforesaid assaults, plaintiff CARLOS DEJESUS received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

56. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

57. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

58. That as a result of the foregoing, the plaintiff CARLOS DEJESUS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF CARLOS DEJESUS

59. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 58 as though more fully set forth herein.

60. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

61. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and in the proper use of force.

62. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff CARLOS DEJESUS was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff

was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

63. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
April 13, 2023



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff
CARLOS DEJESUS
888 Grand Concourse
Suite 1-O
Bronx, NY 10451
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To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street
New York, New York 10007

P.O. Francisco Rodriguez, Shield 6131
40th Precinct 257 Alexander Ave., Bronx NY 10454

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

CARLOS DEJESUS

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that affirmant is presently maintaining his office outside of the county wherein plaintiff resides due to the NY PAUSE and Executive Orders issued thereunder.

DATED: Bronx, N.Y.

March 31, 2022



JONATHAN L. GLEIT, ESQ.